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In black and white: of privacy and free speech online

Digit and Bhairav Acharya, a constitutional lawyer based in Delhi and Bangalore, discuss the duality of our rationality and our value system when dealing with our real and virtual lives in the era of the Internet. The views expressed here are his own. Please treat them as such.

◀ Bhairav Acharya, Constitutional Lawyer at Supreme Court of India, with a keen interest in all matters concerning free speech and privacy issues.

For a regular citizen, what is the free speech and privacy situation in India and how does it compare to other countries?

Acharya: This is a very relevant question; let's first deal with free speech and then with privacy. While political criticism is allowed, India criminalises many kinds of speech that are allowed in other democracies. Thomas Macaulay, who drafted the Indian Penal Code in the mid-1800s, believed that Indians were irrational and prone to religious excitement. Unfortunately, this condescending stereotype appears to have been prophetic. While all mature democracies allow and constitutionally protect offensive and insulting speech, India still convulses each time a film or book merely examines issues such as religion, caste, or culture.

Online speech has received even heavier censorship. Ordinary citizens have been arrested simply for liking Facebook posts or voicing other harmless opinions, such as the two young women who questioned a Mumbai bandh. There is something morally unsound about a nation that uses its law as a weapon to harass artists and writers and students. This is unlike the US, which strongly protects the free speech rights of its citizens, including the right to burn the national flag, sexually depict religious symbols, or non-violently insult a community. India also does not have laws to properly protect

privacy. Look at telephone tapping, for instance. Instead of an independent and neutral authority, a senior bureaucrat orders a phone tap and a committee consisting of more bureaucrats is supposed to review this decision. There is no external oversight, unlike other democracies where both national security and citizens' privacy is better protected. This farcical situation derives from an 1885 colonial law which has not been properly reformed. As you can imagine, privacy is the first casualty.

The government is rolling out Central Monitoring System (CMS) and NETRA for surveillance on the grounds of 'national security'. What can you tell us about it?

Acharya: As long as the CMS is merely an automation of the existing targeted telephone tapping procedure, there is nothing wrong with the project itself. The problem is that the telephone tapping regime in India as a whole needs to be changed. For instance, in the US, a wiretap warrant is only issued by a judge after the government meets certain minimum legal standards. In India, the order is issued by a senior bureaucrat who is not a judicial authority but is allowed to interpret the law. In the UK, which also gives the tapping power to a government official, the tapping order is subsequently audited by an independent commissioner

who reports to their Parliament, and the tapping order can also be reviewed by a quasi-judicial tribunal. In India, the only review mechanism is an informal group of further bureaucrats. A recent RTI request revealed no records of the meetings of this review group.

There is a difference between targeted surveillance and mass surveillance, the former is against an individual while the latter is against an entire population. If newspaper reports (quoting an unnamed government official) are to be believed, NETRA is a secret project to conduct mass surveillance of the Internet activities of all Indians. If this is not the case, the government should explain NETRA through a parliamentary statement. Assuming the worst-case scenario is true – and I sincerely hope that it is not – NETRA can be used to analyse all traffic flowing through ISP nodes to monitor all Internet activity and communications. Personally, I hope that NETRA will be a targeted mechanism that will follow the procedures set out in the IT Act. However, like the telephone tapping regime, the Internet monitoring regime also suffers from broader flaws that need to be rectified before large-scale projects like NETRA should be permitted to function.

As the Internet slowly becomes indispensable, how are the authorities adjusting to